

Calendar Line 4

Case Name: *Wells Fargo Bank, N.A. vs Alexandra J. Lewis*

Case No.: 24CV445892

I. BACKGROUND

This is a limited civil action brought by plaintiff Wells Fargo Bank, N.A. (“Wells Fargo”) against defendant Alexandra Lewis. Wells Fargo seeks to recover unpaid credit card debt from Lewis.

The original and still-operative complaint is a form complaint filed by Wells Fargo on August 23, 2024. It states two causes of action: (1) Breach of Written Contract; and (2) Breach of Implied-In-Fact Contract. Attached to the complaint as Exhibit A is a copy of the Visa credit card agreement upon which the first cause of action is based. (See Complaint, ¶ BC-1.) While the credit card agreement is not signed by either party, paragraph 1 of Part 1 states, in part: “This contract is for your Credit Card account (Account) and is between Wells Fargo Bank, N.A. and each account holder By using or confirming your Account, you and any joint Account holder accept this agreement’s terms.” Paragraph 2 of Part 1 states, in part: “When you use your Account or let someone else use it, you promise to pay the total amount of the Purchases, Cash Advances, and Balance Transfers. You also promise to pay all interest, fees, and other amounts that you may owe us.”

Lewis answered the complaint on December 5, 2024. Wells Fargo has now filed a motion for summary judgment, which Lewis opposes.

II. MOTION FOR SUMMARY JUDGMENT

A. General Standards

The pleadings limit the issues presented for summary judgment or summary adjudication and such a motion may not be granted or denied based on issues not raised by the pleadings. (See *Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258 (*Laabs*); *Nieto v. Blue Shield of Calif. Life & Health Ins.* (2010) 181 Cal.App.4th 60, 73 (*Nieto*) [“[T]he pleadings determine the scope of relevant issues on a summary judgment motion.”].)

The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A motion for summary judgment or adjudication shall be granted only if it completely disposes of an entire cause of action, an affirmative defense, a claim for damages, or an “issue of duty.” (See Code Civ. Proc., § 437c, subd. (f)(1); *McClasky v. California State Auto. Ass’n* (2010) 189 Cal.App.4th 947, 975 [“If a cause of action is not shown to be barred in its entirety, no order for summary judgment—or adjudication—can be entered.”]; *Palm Springs Villas II Homeowners Association, Inc. v. Parth* (2016) 248 Cal.App.4th 268, 288.)

The moving party’s declarations and evidence will be strictly construed in determining whether they negate or disprove an essential element of a plaintiff’s claim—the court will “resolve any evidentiary doubts or ambiguities in plaintiff’s [or opposing party’s] favor.” (*Johnson v. American Standard, Inc.* (2008) 43 Cal.4th 56, 64.) While the same standards of admissibility govern both, the opposition declarations are liberally construed while the moving party’s evidence is strictly scrutinized. (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th

763, 768.) The evidence must be liberally construed in support of the opposing party, resolving any doubts in favor of that party. (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1037.)

Where a plaintiff has moved for summary judgment, it has the burden of showing that there is no defense to a cause of action. (Code Civ. Proc. § 437c, subd. (a).) That burden can be met if the plaintiff has proved each element of the cause of action entitling it to judgment on that cause of action. If the plaintiff meets this burden, it is up to the defendant to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. (See Code Civ. Proc., § 437c, subd. (p)(1); *Professional Collection Consultants v. Lauron* (2017) 8 Cal.App.5th 958, 965.)

B. The Basis for Wells Fargo's Motion

Wells Fargo moves for summary judgment on the ground that “there is not triable issue of material fact, or issue of liability, and therefore the moving party is entitled to summary judgment.” In addition to the notice of motion and supporting memorandum, the motion is supported by a separate statement of undisputed facts, the declaration of Wells Fargo's PMQ witness (Charles Brophy), and a declaration of counsel. (February 19, 2025 Notice of Motion, p. 2:1-4.)

The motion mistakenly asserts that the complaint states six causes of action: causes of action for breach of written contract and breach of implied-in-fact contract plus four more. (See Notice of Motion, p. 1:26-28.)⁶ There are only two causes of action in the complaint, and so the court disregards the extraneous arguments in the motion related to causes of action (*e.g.*, “Open Book Account”) that were not pled. The accompanying separate statement also does not comply with rule 3.1350(d)(1) (and (h)) of the California Rules of Court. Rather than list undisputed material facts (“UMFs”) in support of summary judgment as a whole, it lists UMFs in support of five “issues,” none of which are listed in the notice of motion. The court exercises its discretion to consider the motion despite this failure, as the first 14 UMFs (for “issue one”) are sufficient to support summary judgment as to the two causes of action asserted in the complaint. The court's authority to deny summary judgment for failure to comply with rule 3.1350 is discretionary, not mandatory. (See *Holt v. Brock* (2022) 85 Cal.App.5th 611, 619, citing *Truong v. Glasser* (2009) 181 Cal.App.4th 102, 118.)

Wells Fargo argues that Lewis “was issued a Wells Fargo Credit Card on July 6, 2020. Defendant used the credit card for a period of several years and failed to remit any further payments on [her] Wells Fargo Credit Card ending in 7418 since July 4, 2023, leaving an outstanding balance of \$7,989.57. There are absolutely no facts in dispute and judgment for Plaintiff is appropriate.” (Memorandum, p. 3:4-8.) Wells Fargo goes on to argue that the evidence it submits in support of the motion establishes the elements of breach of written contract and breach of implied contract. (See *id.* at pp. 5:23-7:7.)

As noted above, the motion is supported by two declarations. The first is a declaration from Charles Brophy, a Loan Workout Specialist at Wells Fargo. He states that as a part of his duties, he is responsible for monitoring credit card accounts, investigating and resolving

⁶ Oddly, the opposition makes the same mistake.

customer disputes, and reviewing Wells Fargo business records for purposes of litigation. He further states that as part of his duties, he has reviewed Lewis's records with Wells Fargo. These records show:

9. Defendant applied for, and was issued, a Wells Fargo credit card account.
10. Thereafter, Plaintiff sent Defendant a Wells Fargo Credit Card through the mail.
11. The most recent Customer Agreement associated with the Credit Card was made available to Defendant for review and objection
12. Pursuant to Paragraph 1 of the Customer Agreement, Defendant accepted the terms of the Customer [A]greement by using the credit card.
13. Defendant's account was opened with Plaintiff on or about July 6, 2020.
14. Pursuant to the terms of the Customer Agreement, in exchange for making charges on the credit card, Defendant agreed to repay the principal amount plus any applicable interest and finance charges thereon.
15. Defendant charged goods and services to the account, or authorized others to charge goods and services to the account, with Plaintiff and thereby incurred a balance for said charges along with interest which was stated on the monthly billing statements
16. Every month Wells Fargo Bank, N.A.'s computer system generates a monthly statement that is sent to the customer. As transaction are reported such as charges, overdraft transfers, cash advances and payments, they are recorded in Wells Fargo Bank, N.A.'s computer system which stores them, compiles the data, and keeps track of the balance on a daily basis. This data is then used to generate the monthly statement that is sent to the customer

(Brophy Decl., ¶¶ 9-16.)

Brophy also declares that there "is no record of any unresolved disputes on this credit card account or any active lawsuits against Wells Fargo Bank, N.A. for any unresolved disputes on this credit card account of which Plaintiff is aware. [¶] The Defendant made payments of the principal and interest on the subject account up and through July 4, 2023. [¶] No further payments were made on this account after July 4, 2023, and a balance of \$7,989.57 remains due and owing from Defendant to Plaintiff on the subject account." (Brophy Decl., ¶¶ 20-22.)

There are two exhibits to the Brophy declaration. Exhibit 1 is a copy of Wells Fargo's most recent Customer Agreement. Exhibit 2 consists of copies of all available statements of account for Lewis's credit card. (See Brophy Decl., ¶¶ 11 and 15.)

The second declaration in support of the motion is from counsel Ashley Mulhorn, who authenticates two attached exhibits (again numbered 1 and 2). Exhibit 1 is a copy of requests for admissions that Wells Fargo propounded on Lewis, and Exhibit 2 is a copy of Lewis's

responses. Lewis admitted Request No. 1, which asked her to admit that Wells Fargo issued her a Visa credit card, and Request No. 5, which asked her to admit that she had never disputed the accuracy of any of the monthly statements for the credit card. Lewis is bound by these responses.

C. Discussion

The evidence submitted by Wells Fargo is sufficient to meet its initial burden of establishing an absence of triable issue of material fact as to the existence and amount of the debt owed by Lewis to Wells Fargo. The evidence is therefore sufficient as to both causes of action alleged in the complaint.

Lewis does not raise any triable issues of material fact on rebuttal. The only argument she makes in her opposition is that Wells Fargo fails to meet its initial burden. The court concludes otherwise. In addition, Lewis has failed show that any of Wells Fargo's undisputed material facts are actually disputed. Code of Civil Procedure section 437c, subdivision (b)(3) provides that papers opposing a motion "shall include a separate statement that responds to each of the material facts contended by the moving party to be undisputed, indicating if the opposing party agrees or disagrees that those facts are undisputed. The statement also shall set forth plainly and concisely any other material facts the opposing party contends are disputed. *Each material fact contended by the opposing party to be disputed shall be followed by a reference to the supporting evidence.* Failure to comply with this requirement of a separate statement may constitute a sufficient ground, in the court's discretion, for granting the motion." (Emphasis added.)

While Lewis's separate statement purports to dispute *all* of Wells Fargo's undisputed material facts, it fails to cite any evidence in support of those disputes. Instead, her separate statement merely cites her objections to Wells Fargo's evidence. Objections to evidence are not themselves evidence. All of Wells Fargo's undisputed material facts therefore remain undisputed as a matter of law. Lewis has failed to submit any cognizable evidence in opposition to the motion.

Lewis's objections to evidence do not comply with rule 3.1354 of the California Rules of Court. This rule requires the filing of two documents: the objections to evidence and a proposed order on the objections. Both documents must be in one of the formats set forth in the rule. Objections that do not fully comply with rule 3.1354 will not be considered. (See *Vineyard Spring Estates v. Superior Court* (2004) 120 Cal.App.4th 633, 642 [trial courts only have duty to rule on evidentiary objections presented in proper format]; *Hodjat v. State Farm Mutual Automobile Ins. Co.* (2012) 211 Cal.App.4th 1 [trial court not required to rule on objections that do not comply with rule 3.1354 and not required to give objecting party a second chance at filing properly formatted papers].)

Even if Lewis's objections complied with the rule, the court would overrule them. The court finds that both the Brophy declaration and the Mulhorn declaration are based on a sufficient evidentiary foundation to authenticate the attached exhibits, and this evidence is sufficient to establish the existence of a contract (the credit card agreement), Lewis's acceptance of that contract (including through the use of the credit card), the fact that she received statements of the account, her breach through failure to pay amounts owed, and resulting damage to Wells Fargo.

The motion for summary judgment is GRANTED.

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Calendar Line 5**Case Name:** *Jonathan Maldonado v. Aniceto Alva***Case No.:** 21CV381717

This is a motion for attorney’s fees by defendant Aniceto Alva. It was originally scheduled to be heard on June 10, 2025, but plaintiff Jonathan Maldonado filed an objection to the motion, stating that his counsel was never properly served, and requesting a continuance “of at least 16 court days” to respond substantively. The court granted Maldonado’s request and continued the hearing to July 29, 2025.

The court has not received any opposition to the motion.⁷ Having reviewed the moving papers, the court concludes that they show good cause for an award of attorney’s fees.

First, Alva is the prevailing party on the contract (a residential lease) between himself and Maldonado. The court (Judge Geffon) awarded Alva \$12,179.00 in damages for unpaid rent and property damage by Maldonado. The court offset this award with \$1,900.00 in favor of Maldonado for a breach of the implied warranty of habitability, but the net judgment was in favor of Alva for \$10,679.00 “plus costs.”

Second, Alva also prevailed on Maldonado’s retaliation claim, which under Civil Code section 1942.5, subdivision (i), allows the “prevailing party” to make a claim for attorney’s fees.

Third, the lease between the parties included a clause providing for “reasonable attorney’s fees and court costs” to the “prevailing party.”

Fourth, as Alva points out, he did not bring an unlawful detainer action against Maldonado. Rather, this suit was initiated by Maldonado, and unlike an unlawful detainer action, it lasted over three and a half years, culminating in a two-day trial. Thus, although \$56,667.67 in fees and \$5,569.66 is a hefty amount, particularly given the amount of ultimate recovery, it is supported by an “attorney time sheet” that shows numerous reasonable tasks performed by Alva’s counsel over the course of several years—from June 2021 to February 2025. The court agrees with Alva that this case was not “litigated under ordinary circumstances,” under Code of Civil Procedure section 871.11, subdivision (b).

For the foregoing reasons, the court GRANTS the motion for attorney’s fees and costs in the total amount of \$62,237.33.

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⁷ Instead, on the eve of the hearing, after the court had already prepared this tentative ruling, Maldonado submitted an eleventh-hour ex parte request for yet another continuance of the hearing—opposed by Alva—which the court denied for failure to show good cause.